

Installment facility under clause 6.14 for outstanding electricity bills

High Court of Judicature at Allahabad · Division Bench · 7 June 2012 · Writ-C No. 29684 of 2012 · **Writ disposed of; arrears to be paid in three equal installments under clause 6.14.**

HEADNOTE

Clause 6.14 of the U.P. Electricity Supply Code, 2005 permits the Executive Engineer or a higher officer to allow installment payment to consumers in financial distress. Where a domestic consumer was ready to pay arrears of Rs. 41,460 demanded on 20.01.2012, and the licensee had no objection to realization in installments, the Court directed payment of the entire demand in three equal installments, with liberty to recover the whole sum on default and stay of recovery in the meantime.

FACTUAL SUMMARY

The petitioner took a domestic electricity connection on 18 March 2002 and paid bills regularly until November 2011. On 20 January 2012 the licensee issued a demand notice for arrears of Rs. 41,460. He sought quashing of that notice, pleading inability to pay the whole sum at once because of poor financial condition, and offered to clear the dues in easy installments. Counsel for the respondents stated that the department was interested in realization of the dues and had no objection to payment in installments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for financial distress

HOLDING

Paragraph 6.14 of the U.P. Electricity Supply Code, 2005 empowers the Executive Engineer or any officer higher in rank to extend installment facility to consumers in financial distress. Where the consumer was ready to pay outstanding electricity bills and the licensee had no objection to realization in installments, the Court directed payment of the entire demanded amount in three equal installments (by 31.7.2012, 30.09.2012 and 30.11.2012), with recovery of the whole sum on default of any installment and stay of recovery in the meantime, the stay continuing stepwise on deposit of each installment. ¶ 5-6

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress Facility granted because the petitioner pleaded inability to pay the entire arrears at once due to poor financial condition, and clause 6.14 authorises the Executive Engineer or a higher officer to grant installments to consumers in financial distress. ¶ 4-5

installment-payment-clause-6.14 Outstanding bills of Rs. 41,460 directed to be paid in three equal installments under clause 6.14, with default accelerating the entire amount and stay of recovery while installments were kept. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ARREARS DEMAND DATED 20.01.2012

The writ sought quashing of the demand notice; the Court granted installment facility under clause 6.14 without examining whether the arrears were due. ¶ 2,5,7